Dated 22 December 1907

Hugh C. Smith. Esq.
and another

to

The Governor & Company
of The Bank of England

Conveyance

OF

Land at Rochampton in
the County of Surrey

Examined.
Edwin Brimfield LLS

LAND REGISTRY
LONDON No 139884
REGISTD 2 JAN 1908
F W Robinson

Sports Club

50.

CL Green

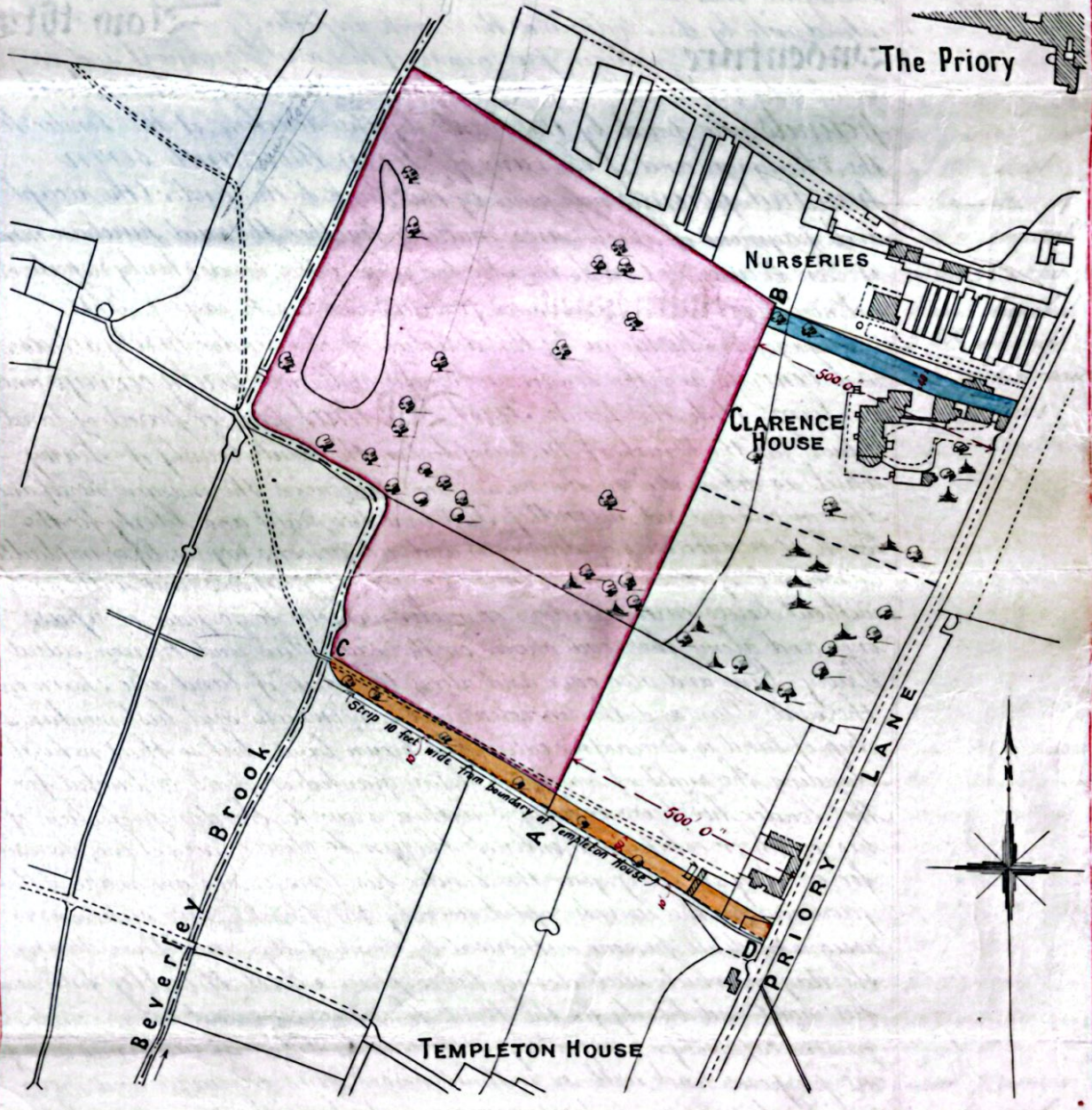
This Indenture

made the twenty fourth day of December One thousand nine hundred and seven Between Hugh Colin Smith of Mount Clare Roehampton in the County of Surrey Esquire (hereinafter called the Vendor) of the first part Reginald Charles Turner of Binfield Park in the County of Berks a Retired Major in His Majesty's First Regiment of Life Guards (hereinafter called the Mortgagee) of the second part and The Governor and Company of the Bank of England (hereinafter called the Bank) of the third part Whereas the Vendor is seised in fee simple in possession of the piece of land hereinafter assured and also of the pieces of land over which rights of way are hereinafter granted subject only as follows that is to say (1) As to all the said premises to an Indenture of Mortgage (hereinafter called the said Mortgage) dated the fifth day of April One thousand nine hundred and made between the Vendor of the one part and Henry Martin Turner of the other part for securing the principal sum of Twelve thousand three hundred pounds with interest thereon upon the said premises together with other hereditaments and premises of large value which said principal sum and interest and the securities for the same are now vested in the Mortgagee by virtue of an Indenture of Transfer dated the sixth day of November One thousand nine hundred and two and made between the Mortgagee and Edmund Turner and Algernon Turner of the first part the Vendor of the second part Thomas Boone Nelson of the third part and the Mortgagee of the fourth part (2) As to such (if any) of the said premises as are affected thereby to certain rentcharges amounting in all to the annual sum of Fifty seven pounds (hereinafter called the original rentcharges) which were charged prior to the year One thousand seven hundred and seventy nine upon the said premises and other hereditaments and premises of very large value but no part of which has been paid out of the said premises hereinafter assured for many years past and to a right of entry and distress granted by the hereinafter recited Indenture of the thirtieth day of October One thousand eight hundred and thirty two by way of indemnity to the owner or owners of a portion of the other hereditaments and premises subject to such rentcharges and (3) As to the strip of land coloured blue on the Plan drawn in the margin hereof (hereinafter called the blue land) to an Indenture of Lease (hereinafter called the said Lease) dated the twenty fourth day of July One thousand eight hundred and ninety five and made

between the Vendor of the one part and Fanny Eliza Cole of the other part whereby the messuage and premises known as Clarence House with the gardens thereof (which include the blue land) were demised unto the said Fanny Eliza Cole for the term of Twenty one years from the twenty fifth day of December One thousand eight hundred and ninety four determinable nevertheless as therein mentioned **And whereas** by an Indenture dated the sixteenth day of December One thousand seven hundred and seventy nine and made between Thomas Parker and Daniel Robinson of the first part Stamp Brookbank of the second part and Isaac Hargrave of the third part certain rentcharges amounting in all to the annual sum of Fifty seven pounds (hereinafter called the indemnity rentcharges) and a term of One thousand years were granted out of and limited in a freehold messuage known as Rochampton Great House and certain lands containing about thirty acres belonging thereto (which said messuage and lands do not include any portion of the premises hereinafter assured) by way of indemnity to the said Stamp Brookbank (who had then lately purchased a portion of the said premises so charged with the original rentcharges as hereinbefore mentioned which portion included the said premises hereinafter assured) his heirs and assigns against the original rentcharges **And whereas** by an Indenture dated the thirtieth day of October One thousand eight hundred and thirty two and made between Frederick Hodgson of the one part and Louisa Stables of the other part a right of entry and distress over certain premises therein mentioned which included a portion of the said premises hereinafter assured was granted by the said Frederick Hodgson (who had then lately purchased the said premises) to the said Louisa Stables (who had then lately purchased certain other portion of the premises) so charged with the original rentcharges) her heirs and assigns by way of further indemnity against the original rentcharges. **And whereas** the Vendor has agreed with the Bank for the sale to them of the piece of land hereinafter assured and of the rights of way hereinafter granted for an Estate in fee simple in possession free from incumbrances except the original rentcharges and right of entry and distress (so far if at all as the said rentcharges or any of them or the said right of entry and distress may now affect the said premises hereinafter assured) but with the full benefit of the indemnity rentcharges and the said term of years created by the said Indenture dated the sixteenth day of December One thousand seven hundred and seventy nine at the price of Ten thousand pounds **And whereas** the said principal sum of Twelve thousand three hundred pounds remains owing to the Mortgagee upon the security of the said Mortgage and the said Indenture of Transfer but all

interest thereon has been paid up to the date hereof as the Mortgagee hereby acknowledges **And whereas** it has been agreed that the Mortgagee shall join in these presents in manner hereinafter appearing **And whereas** upon the treaty for the said sale it was agreed that such covenants as are hereinafter contained should be entered into by the Vendor and the Bank respectively **Now this Indenture** made in pursuance of the said agreement and in consideration of the sum of Two thousand three hundred pounds now paid by the Bank by the direction of the Vendor to the Mortgagee and of the sum of Seven thousand seven hundred pounds now paid by the Bank to the Vendor (the receipt and payment of which sums making together the said purchase money of Ten thousand pounds the Mortgagee and the Vendor hereby respectively acknowledge) **witnesseth** as follows that is to say:- 1. The Mortgagee as Mortgagee by the direction of the Vendor hereby releases and conveys and the Vendor as Beneficial Owner hereby conveys and confirms Unto the Bank **First All** that piece or parcel of land situate in the Parish of Rochampton in the said County of Surrey which is delineated on the said Plan drawn in the margin hereof and thereon coloured red **Secondly** Full and free right and liberty for the Bank their successors and assigns and all persons expressly or impliedly authorised by them at all times and for all purposes and with or without horses carts carriages or motor vehicles to go pass or repass over and along the road shewn on the said Plan and thereon called Priory Lane and also over and along the strip of land also shewn on the said Plan and thereon coloured brown (which said last mentioned strip of land is hereinafter called the brown land) but so that notwithstanding the right of way hereinbefore granted it shall be lawful for the Vendor his heirs or assigns with a view to the due protection of his or their estate and interest therein to close Priory Lane aforesaid for one day in every year the Vendor his heirs or assigns making due provision for the uninterrupted user by the Bank their successors or assigns and all persons authorised by them of the said Lane during the day on which such closing takes place **And thirdly** full and free right and liberty for the Bank their successors and assigns and all persons expressly or impliedly authorised by them at all times and for all purposes and with or without horses carts carriages and motor vehicles to go pass and repass over and along the blue land but so that the right of way last hereinbefore granted shall not be exercised in any way or to any extent (except with the previous consent in writing of the Vendor his heirs or assigns) during the continuance of the said term of years granted by the said Lease and so also that such last mentioned right of way shall be subject to the provisions hereinafter contained in relation to the substitution -

therefor of another right of way **To hold** all the said premises Unto and to the use of the Bank their successors and assigns in fee simple freed and discharged from the said Mortgage and from



Scale 1/2500

all principal moneys and interest thereby secured and from all claims and demands thereunder but subject (so far if at all as the said premises or any parts thereof are affected thereby) to the original

rentcharges and the said right of entry and distress but with the full benefit of and the right to take advantage of and enforce against the said premises charged therewith the indemnity rentcharges and the said term of years created by the said Indenture dated the sixteenth day of December One thousand seven hundred and seventy nine.——

2A The Bank for themselves their successors and assigns to the intent that the covenant hereinafter contained may bind the said piece of land hereinbefore assured into whosesoever hands the same may come but not so as to render themselves liable in damages after they shall have parted with all interest therein hereby covenant with the Vendor his heirs and assigns owner or owners for the time being of the estate of the Vendor known as the Clarence House Estate that (subject nevertheless as hereinafter provided) the Bank their successors and assigns owner or owners for the time being of the said piece of land hereinbefore assured or any part thereof will not at any time or times hereafter carry on or permit to be carried on upon the said piece of land or any part thereof or in or upon any building for the time being standing thereon any noisy noisome or offensive trade business or occupation or any trade business or occupation which may be or grow to be a nuisance or annoyance to the owners or occupiers of the adjoining or neighbouring premises nor use or permit to be used any building for the time being standing upon the said piece of land or any part thereof as a Licensed Victuallers House Lunatic Asylum or Licensed Madhouse nor erect or set up or permit to be erected or set up any Steam engine forge or furnace upon any part of the said piece of land or in any building thereon nor erect or permit to be erected upon the said piece of land any Chimney of a greater height than ten feet above the roof of the building of which it forms part nor any chimney standing separately from a building nor erect or permit to be erected within one hundred yards of the boundary line marked A. B. on the said Plan drawn in the margin hereof any building except dwellinghouses with the usual outbuildings of a cost in material and labour of not less than Six hundred pounds in respect of each house **Provided always and it is hereby expressly declared** that notwithstanding the covenants on the part of the Bank hereinbefore contained it shall be lawful for the Bank their successors or assigns at all times hereafter to use the said piece of land hereinbefore assured and every part thereof for the purposes of a Sports Club for the use and benefit of the Clerks and Employees for the time being of the Bank their successors or assigns and of such other persons as the Bank their successors or assigns may from time to

time think fit and for that purpose to erect thereon such Club House Racquet Courts Fives Courts Cricket Pavilions and other Buildings and erections as the Bank their successors or assigns may from time to time think desirable And also if the Bank their successors or assigns shall so think fit to apply for and obtain a License for the sale of intoxicating liquors at the said Club House (while the same continues to be used as a private Club House) to the person for the time being entitled to use the same And also to erect on the said piece of land or any part thereof a Record Office for the storage of books and papers and for other purposes connected with the business of the Bank or of their successors or assigns And also to erect on the said piece of land or any part thereof and use a furnace for the purpose of consuming and destroying used Bank Notes old documents waste paper and other waste property and refuse arising from or connected with the business of the Bank but not for any other purpose **Provided always** that all reasonable care shall be exercised by the Bank their successors or assigns to ensure that all smoke and fumes arising from such destruction of waste property and refuse shall as far as may be possible be consumed in the said furnace and not allowed to escape therefrom] B

3 The Vendor for himself his heirs and assigns to the intent that the covenant hereinafter contained may bind the piece of land next hereinafter mentioned into whosesoever hands the same may come but not so as to render him or them liable in damages after he or they shall have parted with all interest therein hereby covenants with the Bank their successors and assigns owners for the time being of the said piece of land hereinbefore assured that the Vendor his heirs and assigns will not at any time hereafter carry on or permit to be carried on in or upon the piece of land lying between the said boundary line marked A B on the said Plan and Priory Lane aforesaid or any part thereof or in or upon any building or erection for the time being standing thereon any noisy noisome or offensive trade business or occupation which may be or grow to be a nuisance or annoyance to the owners or owner or occupiers or occupier of the said piece of land hereinbefore assured or any part thereof but so that the covenants on the part of the Vendor hereinbefore contained shall not prevent the

use of the said piece of land for farming or dairy purposes or for games or other similar purposes in connection with a school or educational establishment

4 The Vendor hereby covenants with the Bank forthwith at his own expense in all respects to form and make up such portion of the brown land as lies between the points marked respectively A and D on the said plan into a proper road fit for all usual traffic and with all proper carriage ways footways channels gulleys sewers and lighting arrangements And also if and when required in writing by the Bank their successors or assigns so to do to form such portion of the brown land as lies between the points marked respectively A and C on the said plan into a similar road but so that the said road between the said points A and C shall be formed and made up at the joint expense of the Vendor his heirs or assigns and the Bank their successors or assigns **Provided always** and it is hereby agreed and declared that the expense of maintaining repairing and lighting such portion of the said road as lies between the said points A and D shall as from the date hereof and that the expense of maintaining repairing and lighting such portion of the said road as lies between the said points A and C shall from the time when the same shall have been formed and made up at the request of the Bank their successors or assigns as hereinbefore provided but in each case only until the same shall be taken over by the Local Authority (if that event shall happen) be borne and paid by the Vendor his heirs or assigns and the Bank their successors and assigns in equal shares

5. The Vendor for himself his heirs and assigns hereby covenants with the Bank their successors and assigns that he the Vendor will at all times hereafter effectually keep indemnified the Bank their successors in title and assigns against all actions proceedings claims and demands on the part of any person or persons whomsoever in respect of the original Rent Charges or any part thereof and from all costs charges and expenses in relation thereto

6 The Bank for themselves their successors and assigns and to the intent that the covenants hereinafter contained may (so far as is legally possible) bind the said piece of land hereinbefore assured into whosesoever hands the same may come but not so as to render the Bank their successors or assigns liable in

damages after they shall have parted with all interest in the said piece of land hereby covenant with the Vendor as follows that is to say: First that it shall be lawful for the Vendor his heirs or assigns owner or owners for the time being of the said piece of land lying between the said boundary line marked A.B and Priory Lane aforesaid at any time during the life of the Vendor or within twenty one years after his death to close the said right of way hereinbefore granted over the blue land upon condition that the Vendor his heirs or assigns owner or owners as aforesaid shall at his or their own expense in all respects make a legal and effectual grant to the Bank their successors or assigns of a similar right of way over a strip of land not less in width than the blue land from Priory Lane aforesaid to the said piece of land hereinbefore assured at some point to the North of the line shewn on the said plan by a dotted blue line Secondly that the Bank their successors and assigns shall not except with the previous consent in writing of the Vendor his heirs or assigns owner or owners as aforesaid during the continuance of the said term of years granted by the said Lease make up into a road the blue land or any strip of land which may be substituted therefor as hereinbefore provided Thirdly that the Bank their successors and assigns shall not except with the convent in writing of the Lessee or Lessees for the time being under the said Lease use the blue land as a right of way during the continuance of the said term of years Fourthly that (subject as hereinbefore provided) if and when the Bank their successors or assigns shall desire to use the blue land or any strip of land which may be substituted therefor as hereinbefore provided as a road they shall make up the same into a road at their own expense in all respects and shall thereafter maintain the same at the like expense until the same shall be taken over by the Local Authority (if that event shall happen) **Provided** nevertheless and it is hereby agreed that if the Vendor his heirs or assigns owner or owners as aforesaid shall in exercise of the power hereinbefore contained substitute another strip of land for the blue land after the blue land shall have been made up into a road by the Bank their successors or assigns then the Vendor his heirs or assigns owner or owners as aforesaid shall as a condition of such substitution repay to the Bank their successors or assigns all moneys which may have been expended or paid by them for the purpose of forming the blue land into a road. Fifthly that the Bank their successors or assigns will bear and pay a due proportion of the expenses of lighting and maintaining Priory Lane

aforesaid until the same shall be taken over by the Local Authority (if that event shall happen) in respect of every dwelling house or other building which may for the time being be erected upon the said piece of land hereinbefore assured the amount so to be paid by the Bank their successors or assigns in each year to bear the same proportion to the total cost for that year of lighting and maintaining Priory Lane aforesaid as the rateable value for that year of the dwelling houses or other buildings for the time being standing on the said piece of land shall bear to the total rateable value for that year of all the dwelling houses and other buildings the Owners or Occupiers whereof shall for the time being have a right of way over Priory Lane aforesaid or any part thereof And sixthly that the Bank their successors or assigns shall until Priory Lane aforesaid shall be taken over by the Local Authority (if that event shall happen) pay the expense of all repairs of Priory Lane aforesaid which may be rendered necessary by any exceptional user thereof whether in connection with building operations upon any part of the said piece of land hereinbefore assured or otherwise in connection with the said piece of land and the user thereof

7 The Mortgagee hereby acknowledges the right of the Bank to production of the documents of title specified in the Schedule hereto and to delivery of copies thereof

In witness whereof the Vendor and the Mortgagee have hereunto set their hands and seals and the Bank have caused their Common Seal to be hereunto affixed the day and year first above written

Schedule

30th and 31st July 1840 — Lease and Release the Release between Frederick Hodgson of the first part Richard Henry Beaumont of the second part and Holme Wiggin of the third part

31st July 1840 — Indenture between Andrew Belcher of the first part Robert Shank Matheson of the second part Frederick Hodgson of the third part Richard Henry Beaumont of the fourth part and Daniel Lister of the fifth part

31st March 1857 — Deed Poll under the hand and seal of Wentworth Blackett Beaumont

16th August 1858 — Indenture between Sir Digby Cayley of the one part and William George Prescott of the other part

24th December 1887 — Indenture between Edward Parker Wolstenholme and Richard Prescott Davie of the one part and Hugh Colin Smith of the other part

24th June 1889	Indenture between Edward Parker Wolstenholme and Richard Prescott Decie of the one part and Hugh Colin Smith of the other part
24th June 1889	Indenture between Hugh Colin Smith of the one part and Edward Parker Wolstenholme and Richard Prescott Decie of the other part
2nd April 1900	Indenture between Edward Parker Wolstenholme and Richard Prescott Decie of the one part and Hugh Colin Smith of the other part
5th April 1900	Indenture between Hugh Colin Smith of the one part and Henry Martin Turner of the other part
6th November 1902	Indenture between Reginald Charles Turner Edmund Turner and Algernon Turner of the first part Hugh Colin Smith of the second part Thomas Boone Nelson of the third part and Reginald Charles Turner of the fourth part

Signed Sealed and Delivered by the above named Hugh Colin Smith in the presence of

John Wilson
Clerk to Wright Whart & Southwart
Commercial Street S.E.

Hugh C Smith

Signed Sealed and Delivered by the above named Reginald Charles Turner in the presence of

J. F. Gunning
Member of Lloyds
Royal Exchange E.C.

Reginald C. Turner